THE STATE
versus
TINASHE MUSONZA AKA FRANCIS MUSHONGA

HIGH COURT OF ZIMBABWE
MUREMBA & DEMBURE JJ
HARARE, 4 March 2026

**Criminal Review**

MUREMBA J:

**Background:**

The offender, a 33-year-old male, was convicted of four counts of stock theft under section 114 of the Criminal Law Codification and Reform Act [*Chapter 9:23*]. He pleaded guilty to all the counts. The facts established that he stole cattle between October 2025 and February 2026 on four separate occasions, across four villages, slaughtered them, and disposed of the meat, valued at US$4,700, with only US$300 worth recovered. I hereby confirm the convictions.

**The Sentence Imposed by the Magistrate:**

The magistrate treated counts 1 and 2 as one, and counts 3 and 4 likewise. A sentence of nine years' imprisonment was imposed for counts 1 and 2, and another nine years for counts 3 and 4, resulting in an effective sentence of 18 years' imprisonment.

**Criticism of the Sentencing Approach:**

The magistrate's approach was a misdirection at law. Section 114(2)(e) of the Criminal Law Code prescribes a mandatory minimum sentence of nine years' imprisonment **per count** of stock theft involving cattle, unless special circumstances are established. The provision reads:

> "If the stock theft involved any bovine or equine animal stolen in the circumstances described in para (*a*) or (*b*), and there are no special circumstances in the particular case as provided in subs (3), to imprisonment for a period of not less than nine years or more than twenty-five years;

In this case, no special circumstances were found. Each count represented a distinct offence committed on separate occasions against different complainants. The law requires that each count be sentenced independently, with the statutory minimum applied to each. By merging counts, the magistrate unlawfully reduced the number of sentences imposed, thereby departing from the mandatory framework.

The effect of this error is that the offender received a total sentence of 18 years instead of the minimum 36 years required by law. The magistrate's reasoning that the offences formed part of a "continuous course of conduct" does not justify consolidation, as the statute does not permit such treatment in respect of mandatory minimum sentences. This approach undermines the clear legislative intent to punish each act of stock theft separately and severely, minimizes the seriousness of repeated criminal conduct, and fails to reflect the aggravating factors identified by the court itself, including premeditation, repetition, and substantial harm to multiple victims.

KUDYA J (as he then was) addressed the issue in *S v Huni & Ors* HH 147/09, where the question arose whether a magistrate can treat more than one count of theft of bovine or equine animals as one for purposes of sentence. In interpreting s 114(2)(e) of the Criminal Law Code he said,

> "The import of these provisions is that in the absence of special circumstances an accused person will be sentenced to an effective mandatory minimum sentence of nine years for each count that he is convicted of. Where the accused person has been convicted of more than one count, to treat both or all of them as one for purposes of sentence defeats the clear intention of the legislature for the imposition of an effective mandatory minimum penalty of nine years per count."

KUDYA J went on to quote with approval the remarks of PITTMAN J in *S v Zephania Tarwirei* GS 350/1981, where, with the concurrence of WADDINGTON J, he reviewed a judgment in which the trial magistrate convicted the accused on three separate counts of cattle theft but treated all counts as one for purposes of sentence before imposing the mandatory minimum of nine years' imprisonment. At page 1, PITTMAN J said:

> "It is clear that the wording of section 8A requires that the minimum sentence of 9 years imprisonment shall be imposed for each such theft, and consequently it was not competent for the magistrate to treat the three separate offences as one for sentence."

KUDYA J held that it was incompetent for the trial magistrate, in the cases that he was reviewing, to treat the separate counts as one for purposes of sentence. In view of the

foregoing, it follows that in *casu* the magistrate's decision to merge counts for sentencing was a clear misapplication of the law and amounted to a misdirection.

**Corrected Sentence Order**

The sentence imposed by the trial magistrate is unlawful and must be set aside.
Accordingly, the proper sentence order should be:

- **Count 1:** Nine (9) years' imprisonment.
- **Count 2:** Nine (9) years' imprisonment.
- **Count 3:** Nine (9) years' imprisonment.
- **Count 4:** Nine (9) years' imprisonment.

This results in a total of thirty-six (36) years' imprisonment.

After imposing the mandatory minimum sentence in each count, the court retains the discretion to order whether these sentences run concurrently or consecutively. Section 343 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] provides that when a person is convicted at one trial of two or more different offences, or when a person already serving a sentence for one offence is convicted of another, the court is empowered to impose separate punishments for each offence as it is competent to do. In exercising this power, the court may also determine the order in which those sentences are to be served, or direct that they run concurrently.

In essence, the provision gives the court discretion to either require the offender to serve cumulative sentences, reflecting the arithmetic total of all punishments imposed, or to allow sentences to overlap by running concurrently, depending on the circumstances of the case. In cases where the offences were committed over several months, targeting different victims, and involved repeated premeditated conduct, consecutive sentences may be appropriate to reflect the gravity of the criminality. However, the court may consider concurrency (for example, counts 1 and 2 running concurrently, and counts 3 and 4 likewise) if it finds that certain offences were closely connected in time and circumstance.

The rationale for ordering sentences to be served consecutively is grounded in the principle that each offence must attract its own punishment, particularly where the offences are distinct, committed on different occasions, or involve different victims. Consecutive

sentences ensure that the cumulative penalty reflects the full extent of the offender's criminality, rather than allowing multiple serious offences to be effectively absorbed into a single term of imprisonment. This approach serves the interests of justice by emphasizing accountability for each separate act, deterring repeat offending, and reinforcing the seriousness of crimes that are repeated or premeditated.

Consecutive sentencing is also appropriate where the offences are unrelated in nature or demonstrate a pattern of persistent criminal conduct over time. It prevents offenders from escaping proportionate punishment by having multiple sentences overlap, which could otherwise trivialize the harm caused to victims. Additionally, consecutive sentences uphold the principle of proportionality by ensuring that the punishment matches the gravity and multiplicity of the offences, thereby maintaining public confidence in the justice system. Ultimately, consecutive sentencing is a tool for courts to reflect the seriousness of multiple offences, protect society, and deliver a sentence that is both just and deterrent.

On the other hand, the rationale for ordering sentences to run concurrently rests on principles of fairness and proportionality. Running sentences concurrently ensures that the punishment reflects the overall criminal conduct rather than mechanically multiplying penalties. In some cases, it also prevents excessive or disproportionate sentences that could amount to double punishment for conduct that is essentially part of one course of action. Another reason is the recognition of mitigating factors such as a guilty plea, cooperation with authorities, or genuine remorse, which may justify tempering the severity of cumulative sentences. Concurrency also allows courts to balance deterrence with rehabilitation, ensuring that offenders are not condemned to unduly harsh terms that eliminate prospects of reform. In addition, it promotes consistency in sentencing by aligning with established judicial practice, where concurrency is often applied to offences of similar nature committed in close succession. Ultimately, the discretion to order sentences to run concurrently enables courts to tailor punishment to the circumstances of each case, ensuring justice is both firm and tempered with fairness.

The court exercises its discretion between ordering sentences to run concurrently or consecutively by carefully considering the circumstances of the offences, aggravating and mitigating factors, the interests of justice, and the principles of proportionality. Ultimately,

the discretion allows the court to tailor the sentence so that it is neither unduly harsh nor unduly lenient, balancing deterrence, retribution, rehabilitation, and fairness.

In the *Huni* case *supra,* KUDYA J explained that the trial magistrate had only two lawful options when sentencing in cases of cattle theft. The first was to impose the mandatory minimum of nine years' imprisonment on each count and order the accused to serve the full arithmetic total. The second was to impose the minimum sentence on each count but direct that some or all of the sentences run concurrently. In either scenario, the effective sentence would always be a multiple of nine. He emphasized that the possibility of concurrency was supported by BEADLE CJ (as he then was) in *S v Pearce* 1974 (2) SA 37(R) at 38A-B, where the Chief Justice noted that sentences on separate counts carrying minimum terms can, and often do, run concurrently, and that sentences for lesser offences may also be ordered to run concurrently with those for more serious offences.

In view of the foregoing, the sentence imposed on the offender is hereby set aside and substituted with the following:

- **Count 1:** Nine (9) years' imprisonment.
- **Count 2:** Nine (9) years' imprisonment.
- **Count 3:** Nine (9) years' imprisonment.
- **Count 4:** Nine (9) years' imprisonment.

The 9 years in Count 2 shall run concurrently with the 9 years in Count 1. The 9 years in Count 4 shall run concurrently with the 9 years in Count 3. Total effective sentence: 18 years' imprisonment.

MUREMBA J ……..

DEMBURE J Agrees ……